

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1017

By: Moore

AS INTRODUCED

An Act relating to college sports; enacting the Oklahoma College Athletic Conference Act; providing legislative intent; defining terms; establishing the Oklahoma NCAA Division II Athletic Conference Exploration Commission; providing for membership; providing for chairperson; requiring certain study to be conducted by commission; requiring submission of report; authorizing commission to contract with independent consultants; authorizing commission to consult NCAA; requiring submission of final report; creating the Oklahoma NCAA Division II Athletic Conference Exploration Commission Revolving Fund; authorizing certain expenditures; requiring commission to explore certain funding sources; providing for codification; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 9101 of Title 70, unless there is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Oklahoma College Athletic Conference Act".

1 SECTION 2. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 9102 of Title 70, unless there
3 is created a duplication in numbering, reads as follows:

4 The purpose of this legislation is to establish a new
5 intercollegiate athletic conference, with name to be determined, to
6 promote and regulate college athletics among member institutions
7 within the state. This conference will provide enhanced athletic
8 competition, foster community and state pride, support student-
9 athlete experience by giving more time in classroom and creating
10 higher graduation rates, reduction of university athletic budgets
11 due to less travel, provide better in-state rivalries to enhance
12 student and spectator experience, allow better in-state recruiting
13 thus keeping Oklahoma students in Oklahoma, and ensure compliance
14 with both state and federal regulations governing college athletics.

15 SECTION 3. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 9103 of Title 70, unless there
17 is created a duplication in numbering, reads as follows:

18 As used in the Oklahoma College Athletic Conference Act:

19 1. "Commission" means the body established under this act to
20 explore the creation of a new NCAA Division II athletic conference
21 in this state;

22 2. "NCAA" means the National Collegiate Athletic Association;

23 3. "NCAA Division II" means the governing body for
24 intercollegiate athletics for NCAA-member institutions that compete
--

1 at the Division II level, which balances athletics, academics, and
2 extracurricular activities;

3 4. "Member Institutions" means accredited colleges and
4 universities that would be potential members of the new NCAA
5 Division II conference;

6 5. "Student-Athletes" means individuals enrolled in member
7 institutions who participate in NCAA Division II athletics; and

8 6. "The Conference" means a collective body of NCAA Division II
9 institutions that would form an organized athletic conference under
10 the NCAA's rules and regulations.

11 SECTION 4. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 9104 of Title 70, unless there
13 is created a duplication in numbering, reads as follows:

14 A. There is hereby created an Oklahoma NCAA Division II
15 Athletic Conference Exploration Commission. The Commission shall be
16 responsible for exploring and making recommendations regarding the
17 creation of a new NCAA Division II athletic conference consisting of
18 Oklahoma NCAA Division II Schools and others to be determined and
19 named at a later date.

20 B. The Commission shall initially be composed of ten (10)
21 members as follows:

- 22 1. The president of Northeastern State University;
- 23 2. The president of Southwestern Oklahoma State University;
- 24 3. The president of Northwestern Oklahoma State University;
-

4. The president of Southeastern Oklahoma State University;
5. The president of East Central University;
6. The president of Cameron University;
7. The president of Rogers State University;
8. The president of Oklahoma Christian University;
9. The president of Southern Nazarene University; and
10. The president of Oklahoma Baptist University.

C. Membership of the Commission may be expanded to include other institutional presidents by a majority vote of the initial membership of the Commission if deemed appropriate.

D. The members shall elect a Chairperson of the Commission from among its members, who will lead the Commission's activities.

SECTION 5. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 9105 of Title 70, unless there is created a duplication in numbering, reads as follows:

A. The Commission shall conduct a thorough analysis of the feasibility of establishing a new NCAA Division II athletic conference in Oklahoma considering the following factors:

1. Potential member institutions, including public and private colleges and universities both inside and outside the state of Oklahoma who voluntarily seek to join the conference;
2. The academic and athletic capabilities of potential member institutions to support NCAA Division II athletics;

1 3. Geographic and logistical considerations for scheduling and
2 travel;

3 4. Financial impact and sustainability for potential member
4 institutions;

5 5. The effects on student-athletes, including opportunities for
6 academic and athletic growth, recruitment, and competition; and

7 6. Potential community, regional, and economic benefits,
8 including sponsorships, fan engagement, and media exposure; and

9 7. Alignment with NCAA Division II regulations, policies, and
10 goals.

11 B. The Commission shall consult with a range of stakeholders
12 including, but not limited to:

13 1. NCAA Division II representatives and governing bodies;

14 2. Athletic directors, coaches, and administrators from current
15 NCAA Division II institutions in the region;

16 3. Student-athletes and athletic support staff;

17 4. Local government officials and business leaders;

18 5. Academic and athletic organizations that focus on the
19 interests of Division II athletics;

20 C. 1. The Commission shall prepare and submit a detailed
21 feasibility report to the Oklahoma House of Representatives and the
22 Oklahoma State Senate within twelve (12) months of its first
23 meeting.

24 2. The report shall include:
--

- a. a summary of findings from the study and consultations,
- b. a comprehensive analysis of the benefits, costs, and risks associated with establishing a new NCAA Division II athletic conference,
- c. a list of potential member institutions, including any recommendations for institutions that should be invited to join,
- d. a proposed timeline and framework for transitioning into a new athletic conference, including governance structures, policies, and membership guidelines, and
- e. an assessment of funding and financial models to support the new conference, including membership fees, sponsorship, and broadcasting rights.

SECTION 6. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 9106 of Title 70, unless there is created a duplication in numbering, reads as follows:

A. The Commission is authorized to hire independent consultants, conduct studies, and enter into contracts with experts in areas such as NCAA regulations, athletic conference operations, and financial modeling to assist in the creation of its final report.

1 B. The Commission may engage with the NCAA to ensure that any
2 proposed conference structure aligns with NCAA Division II standards
3 and policies.

4 SECTION 7. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 9107 of Title 70, unless there
6 is created a duplication in numbering, reads as follows:

7 Upon completion of the study, the Commission shall submit a
8 final report to the Oklahoma House of Representatives and the
9 Oklahoma State Senate with its findings, recommendations, and
10 proposed action steps for the creation of a new NCAA Division II
11 athletic conference. The Legislature shall review the Commission's
12 final report and recommendations and, if deemed appropriate,
13 introduce legislation to facilitate the establishment of the new
14 NCAA Division II conference.

15 SECTION 8. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 9108 of Title 70, unless there
17 is created a duplication in numbering, reads as follows:

18 1. There is hereby created in the State Treasury a revolving
19 fund for the Oklahoma NCAA Division II Athletic Conference
20 Exploration Commission to be designated the "Oklahoma NCAA Division
21 II Athletic Conference Exploration Commission Revolving Fund". The
22 fund shall be a continuing fund, not subject to fiscal year
23 limitations, and shall consist of all monies received by the
24 Oklahoma NCAA Division II Athletic Conference Exploration Commission
--

1 from appropriations, gifts, grants, donations, and bequests. All
2 monies accruing to the credit of the fund are hereby appropriated
3 and may be budgeted and expended by the Oklahoma NCAA Division II
4 Athletic Conference Exploration Commission for the purpose of
5 implementing the provisions of this act. Expenditures from the fund
6 shall be made upon warrants issued by the State Treasurer against
7 claims filed as prescribed by law with the Director of the Office of
8 Management and Enterprise Services for approval and payment.

9 B. The Commission may make expenditures from the Oklahoma NCAA
10 Division II Athletic Conference Exploration Commission Revolving
11 Fund to cover expenses related to studies, meetings, consultations,
12 and other necessary activities. Funding that is not expended by the
13 Commission may be used as necessary to perform the necessary
14 activities to create the Conference. These funds can be used for
15 both the initial operating costs of the Conference as well as funds
16 required by conference institutions to pay fees to exit their
17 current conference affiliation. Additional funding may be sought
18 from private or nonprofit sources, if necessary.

19 C. The Commission shall explore various funding sources,
20 including partnerships with private organizations, sponsorships, and
21 grants to help defray costs associated with the creation of the new
22 conference.

23 SECTION 9. It being immediately necessary for the preservation
24 of the public peace, health or safety, an emergency is hereby
..

1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.
3

4 60-1-10382 AQH 03/25/26
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
- -